

2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

In the instant matter, on 10/2/25, Plaintiff requested responses to discovery – namely, Request for Admissions, Set One, which are attached as Exhibit 1 to the Declaration - with a due date of 11/6/25. Defendant did not respond and Plaintiff attempted to meet and confer and also extended the time for a discovery response. Defendant still did not respond.

Disposition

Plaintiff's Motion is granted.

Requests for Admission Numbers One through Nine, attached to the Declaration as Exhibit 1, will be deemed admitted.

Plaintiff to file Order.

8. 9:00 AM CASE NUMBER: L25-02948
CASE NAME: WELLS FARGO BANK, NA VS. DAVID RUPP, AN INDIVIDUAL
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ," or "Motion"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that

there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation*, *supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first rules on the admissibility of Plaintiff's Declaration of Brendan Hogn. The court finds that the records that were submitted as Exhibits do qualify as exceptions to hearsay under the Business Records Exception. Mr. Hogan declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, any statements by Mr. Hogan in the declaration that rely on the observation of any records not contained in the Exhibit run afoul of Evidence Code Section 1523 and will be excluded. This would consist of any statements by Mr. Hogan where he indicates that he observed any particular records or applications in the matter that were not included in the Exhibits.

Further, any statements by Mr. Hogan purporting to have knowledge of a particular event in the instant matter, such as whether a document was mailed to Defendant, would be inadmissible hearsay without a foundational showing that Mr. Hogan has some knowledge of the customs and practices of the Plaintiff; and no such showing was made.

Next, the court evaluates whether Plaintiff has made a prima facie showing of a Breach of Contract.

Plaintiff has provided credit card billing statements that appear to be addressed to Defendant. There are hundreds of pages, which reflect purchases and billing statements, as well as a final balance of \$15,690.61.

However, there is no admissible evidence of an agreement. The only purported evidence in this regard from Mr. Hogan, when he declares that Defendant applied for a card and the cardmember agreement was then sent to the Defendant. Yet there is no foundation for this evidence. The exhibit depicting the cardmember agreement is not addressed to Defendant, nor does it bear his signature. And there is no documentary evidence depicting an application for such a card by Defendant. Moreover, Mr. Hogan did not indicate that he knew anything about the custom and practice of the Plaintiff in this regard.

Thus, the court does not find that Plaintiff has met its burden.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.

2. Plaintiff to prepare the Order after hearing.

9. 9:00 AM CASE NUMBER: L25-08228

CASE NAME: WELLS FARGO BANK, N.A. VS. JOSE SUCHITE

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/18/25, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration of Edgar Lopez (filed 12/18/25) and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit 1 to their Declaration.

Defendant filed a Declaration in response, on 2/9/26, to which Plaintiff then replied, on 3/23/26.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

In the instant matter, on 10/15/25, Plaintiff requested responses to discovery – namely, Request for Admissions, Set One, which are attached as Exhibit 1 to the Declaration - with a due date of 11/19/25. Defendant did not respond and Plaintiff attempted to meet and confer and also extended the time for a discovery response. Defendant still did not respond.

In the response, Defendant indicates that he did not receive the initial discovery request